

Acme Enterprise Agreement

1. Parties & scope

This fictional Enterprise Agreement takes effect on January 1, 2026 between Acme Systems Ltd. (Provider) and Harborline Design Co. (Customer). Provider grants Customer a nonexclusive right to use its hosted workflow platform for internal business operations, for up to 100 named users. The subscription includes reporting, workspace administration and standard onboarding. Customer retains ownership of its business records and is responsible for authorized users. Affiliates may participate only with written approval. This agreement and its four pages constitute the entire commercial arrangement; no additional order form changes the terms stated here. All names, services and signatures in this document are fictional and supplied solely for demonstration.

2. Initial term & delivery

The initial subscription runs for twelve months, from January 1 through December 31, 2026. Provider will provision access within five business days of the effective date and supply two remote onboarding sessions during the first month. Customer will nominate an administrator and provide reasonable configuration instructions. Failure to attend an onboarding session does not postpone the subscription term. Material changes to the service description require written agreement by both parties. Routine product improvements may be released during the term, provided that they do not materially reduce the purchased functionality. Renewal and nonrenewal are governed by Section 6 on page 3.

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3. Fees & payment

The subscription price is USD 24,000 per year, invoiced in twelve monthly installments of USD 2,000 in advance. Each invoice is payable within thirty calendar days of receipt (Net 30). Prices exclude applicable sales taxes. Customer may dispute an invoice in writing within fifteen days of receipt, describing the contested amount; undisputed amounts remain payable on time. The parties will work in good faith to resolve disputes within thirty days. Provider may charge simple interest of 1% per month on undisputed overdue balances, subject to applicable limits. No setup fee or mandatory minimum usage charge applies. Fees remain fixed throughout each annual term.

4. Suspension & invoice remedies

Provider may suspend access for an undisputed invoice more than fifteen days overdue only after giving Customer a further ten calendar days of written notice and an opportunity to pay. Suspension will be limited to the affected account and lifted promptly after payment. Provider may not suspend the service for amounts subject to a documented good-faith dispute. Customer remains responsible for subscription fees during a valid payment-related suspension. Provider will preserve Customer data throughout suspension. Credits resulting from Provider's SLA failures are applied to the next invoice and cannot be offset against taxes. Neither party may change bank details solely by an unauthenticated support message.

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5. Termination & cancellation

Either party may terminate for convenience by giving at least sixty calendar days of written notice. Termination for convenience takes effect at the end of the current annual term, not sixty days after notice if that date is earlier. Nonrenewal also requires sixty days' notice before the annual anniversary. Either party may terminate for a material breach that remains uncured thirty days after written notice identifying the breach. If Customer terminates because of Provider's uncured material breach, Provider will refund prepaid fees covering the unused service period. Convenience cancellation does not entitle Customer to an early exit or refund, and monthly installments remain due through the term's end.

6. Renewal & price changes

At the end of the initial term, the subscription automatically renews for successive twelve-month terms unless either party gives the written nonrenewal notice required by Section 5. For the term ending December 31, 2026, notice must be received at least sixty calendar days before that date. Provider may increase renewal pricing by no more than 5% and must notify Customer at least ninety days before renewal. If Provider misses that pricing notice deadline, current pricing continues for the next renewal term. A renewal creates a new annual commitment even though invoices remain monthly. Notice must be sent to the contract administrator designated by each party.

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7. Liability & indemnities

Each party's aggregate liability arising from this agreement is capped at the fees paid or payable during the twelve months immediately preceding the event giving rise to the claim. At the initial subscription rate, this cap is USD 24,000. Neither party is liable for indirect, consequential, special or punitive damages, including lost profits. The cap and excluded-damage rule do not apply to fraud, willful misconduct or Customer's obligation to pay agreed subscription fees. Provider will defend third-party intellectual-property claims relating to the unmodified platform, subject to this same twelve-month cap. No separate uncapped confidentiality or data-security indemnity is created by this agreement.

8. Service levels & data return

Provider commits to 99.9% monthly service availability, excluding scheduled maintenance of up to four hours per month with forty-eight hours' notice, Customer-caused incidents and force majeure. Availability below 99.9% but at least 99% earns a credit of 5% of that month's subscription fee; availability below 99% earns 10%. Customer must request credits within thirty days of month-end. Credits are the sole remedy for an isolated SLA miss, without limiting termination for an uncured material breach under Section 5. Critical incidents receive an initial response within four business hours. Customer may export its data for thirty days after termination; Provider deletes remaining copies within sixty days, except required records.